

# Rambabu v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 22 March 2024 · 2024:AHC:52204-DB · WRIT - C No. 6170 of 2024 · **Disposed; Executive Engineer to proceed afresh under clause 6.8**

## HEADNOTE

Writ against a recovery citation disposed of after the Executive Engineer sought its return, with liberty to proceed afresh strictly in accordance with clause 6.8 of the U.P. Electricity Supply Code, 2005.

## FACTUAL SUMMARY

Rambabu challenged the recovery citation dated 8 January 2023 issued by respondent no. 4 for electricity dues. On 26 February 2024 the Bench noted that no date appeared to have been fixed for hearing before the final assessment, granted time for instructions, and directed that no coercive action be taken meanwhile. By 22 March 2024 the Executive Engineer of Dakshinanchal Vidyut Vitran Nigam Limited had written for return of that certificate, and the petitioner sought liberty for a fresh order after hearing.

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005::6.8

fresh assessment under clause 6.8

### HOLDING

Once the licensee seeks return of the recovery citation and the petitioner asks for a fresh order after hearing, the writ is disposed of with liberty to the Executive Engineer to proceed afresh strictly in accordance with the procedure prescribed under clause 6.8 of the U.P. Electricity Supply Code, 2005. ¶ 4

## PRINCIPLE TAGS

**6.8-procedure-mandatory** The court did not sustain or cancel the dues. It permitted a fresh order only if the Executive Engineer followed the procedure prescribed in clause 6.8, the course the petitioner had sought so that a hearing would be given. ¶ 4

## NOT DECIDED — NEGATIVE AUTHORITY

### NOT DECIDED — WHETHER ANY ELECTRICITY DUES WERE PAYABLE, AND IN WHAT AMOUNT

The recovery certificate was being returned and the assessment was left to a fresh clause 6.8 proceeding. ¶ 2-4